



U.S. Department  
of Transportation

Research and  
Special Programs  
Administration

400 Seventh Street, S.W.  
Washington, D.C. 20590

DOT-E 10963  
(SECOND REVISION)

JUL 14 1995

EXPIRATION DATE: April 30, 1997

(FOR RENEWAL, SEE 49 CFR 107.105.)

1. GRANTEE: SGL Carbon Corporation, Union, New Jersey.
2. PURPOSE AND LIMITATIONS: This exemption authorizes the manufacturing, marking, and sale of a non-DOT specification salvage cylinder for overpacking damaged or leaking cylinders of pressurized and non-pressurized hazardous materials for transportation in commerce, and provides no relief from any regulation other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Sections 173.24(b)(1), 173.34.
5. BASIS: This exemption is based on SGL Carbon Corporation's application dated May 3, 1995, submitted in accordance with 49 CFR 107.103 and 49 CFR 107.105 and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR 172.101): Those hazardous materials, except acetylene, which are classed as Division 2.1, Division 2.2, Division 6.1, Class 3, and liquids which are Division 4.3 and authorized in DOT specification cylinders.
7. SAFETY CONTROL MEASURES:
  - a. PACKAGING - Packaging prescribed is a non-DOT specification, full-removable head, austenitic stainless steel salvage cylinder of welded construction, with provisions for securely positioning the damaged packages contained therein. The salvage cylinder must conform with Sigri GmbH drawing 800 289 dated February 2, 1989 and be designed, constructed and stamped in accordance with Section VIII Division I of the ASME Code. Additionally, the salvage cylinder must conform to the following:

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|                         |                                                                              |
|-------------------------|------------------------------------------------------------------------------|
| Volume                  | 3 1/2 gallons water capacity                                                 |
| Material                | SA 182 Type 321                                                              |
| Design stress at MAWP   | 18,178 psig                                                                  |
| Outside diameter        | 12 inches                                                                    |
| Length                  | 35 1/2 inches                                                                |
| Design wall thickness   | 0.26 inch, nominal                                                           |
| Design service pressure | 1044 psig                                                                    |
| Test pressure           | 1566 psig                                                                    |
| Openings:               |                                                                              |
| On sidewall             | None                                                                         |
| On removable top head   | Three 1/4 inch NPT for a pressure gauge, an analysis valve and a purge valve |
| Pressure relief devices | None                                                                         |
| Welded attachments      | Two lifting lugs                                                             |

b. TESTING. At least once every 2 years, each cylinder must be visually reinspected (internally and externally) and hydrostatically retested at 1566 psig. The visual inspections must be performed in accordance with the Compressed Gas Association's Pamphlet C-6.

c. MARKING.

(1) Each salvage cylinder must be plainly and durably marked on opposite sides near the middle, in letters at least 2 inches high on a contrasting background "DOT-E 10963" and "SALVAGE CYLINDER".

(2) Each salvage cylinder must bear the appropriate DOT hazard class labels as prescribed for the materials being salvaged.

8. SPECIAL PROVISIONS.

a. Offerors for transportation of the hazardous materials specified in this exemption may use the packaging described in this exemption for the transportation of such hazardous materials so long as no modifications or changes are made to the packages, all terms of this exemption are complied with, and a copy of the current exemption is maintained at each facility from which such offering occurs.

b. Each packaging manufactured under the authority of this exemption must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Exemptions and Approvals for a specific manufacturing facility.

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c. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.

d. Drivers and persons who load, unload or transport these salvage cylinders must have been trained in handling, loading and unloading the cylinder. The loaded salvage cylinder must be delivered to the consignor or consignee as soon as practicable.

e. Salvage cylinders are authorized for use only with damaged or leaking DOT specification cylinders, containing those hazardous materials which are authorized for shipment in the cylinder. Additionally, cylinders containing nonliquefied and liquified gases are limited in pressure and volume so that if totally discharged into the salvage cylinder, the pressure in the salvage cylinder will not exceed: (1) 1,044 psig at 70°F for nonliquefied gases, and (2) 1,044 psig at 130°F for liquefied gases.

9. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

10. MODAL REQUIREMENTS.

a. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

b. Transportation is limited to motor vehicles owned or leased by Sigri Great Lakes Carbon Corporation or its customers or vehicles owned or leased by contract carriers employed by the exemption holder.

c. Each salvage cylinder must be secured to the motor vehicle by a securement system that conforms with the requirements contained in 49 CFR 393.100 to 393.106.

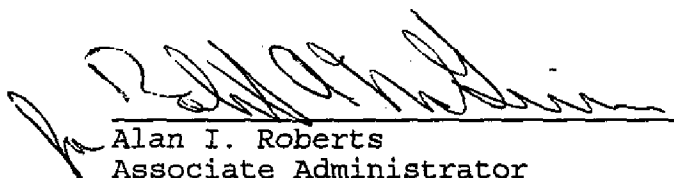
11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law 49 U.S.C. Section 5101 et seq.,

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, Parts 171-180.
- o Any use or application of this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

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12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must also inform the AAHMS, in writing, as soon as practicable of any incidents involving the package and shipments made under this exemption.

Issued at Washington, D.C.

  
Alan I. Roberts  
Associate Administrator  
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.  
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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